

24TRCV02000 24TRCV02000

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-29

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Case Number: 24TRCV02000 Hearing Date: July 29, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Wednesday – July 29, 2026

Calendar No.

PROCEEDINGS

Liga

Maria Rivas Ramirez, et al. v. American Honda Motor Company, Inc., et al.

24TRCV02000

1.

Ligia Rivas

Ramirez, et al.'s Motion to Compel Compliance with the Court's May 20, 2026

Discovery Order Compelling the Deposition of Defendant's Person Most Qualified

TENTATIVE RULING

Ligia Rivas Ramirez, et al.'s Motion to Compel

Compliance with the Court's May 20, 2026 Discovery Order Compelling the

Deposition of Defendant's Person Most Qualified is granted.

Background

Plaintiffs filed their Complaint on June 13, 2024. This is a “Lemon Law” case brought by Plaintiffs concerning a 2022 Honda Pilot. Plaintiffs allege that the vehicle suffers from widespread defects. Defendant was unable to repair their vehicle within a reasonable number of attempts. Plaintiffs further allege that Defendant knew that the vehicle suffered from the prevalent defects but nevertheless refused to repurchase the vehicle—a willful violation of the Song-Beverly Consumer Warranty Act (“Song-Beverly Act”). On May 20, 2026, Plaintiffs’ motion to compel the deposition of Defendant’s PMQ was granted.

Motion to Compel Compliance

The party noticing the deposition may move for an order compelling appearance at the deposition and production of documents, pursuant to the deposition notice, from the party deponent who fails to appear or produce materials requested in the deposition notice, and who has not served a valid objection under § 2025.410(a). CCP § 2025.450(a).

Code

Civ. Proc., § 2025.450(h) states:

“If that party or party-affiliated deponent then fails to obey an order compelling attendance, testimony, and production, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010) against that party deponent or against the party with whom the deponent is affiliated. In lieu of, or in addition to, this sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against that deponent or against the party with whom that party deponent is affiliated, and in favor of any party who, in person or by attorney, attended in the expectation that the deponent’s testimony would be taken pursuant to that order.”

Plaintiff

moves for an order compelling compliance with the Court order of May 20, 2026 ordering Defendant’s person most qualified to appear and testify and produce documents at his or her deposition. The motion is made on the grounds that the

deponent failed to appear for the re-noticed date of the deposition and the deponent has failed to schedule an alternative date for the deposition.

Defendant

filed no written opposition to the motion. Thus, Plaintiff's motion to compel compliance with the order compelling deposition is granted. Defendant's person most knowledgeable is ordered to appear for deposition and produce documents at a date and time that can be agreed upon by the parties. If no agreement can be reached, the deponent is ordered to appear at a reasonable date and time to be determined by the moving party no earlier than ten days from this date.

Plaintiff is ordered to give notice of the Court's ruling.